

SERVICE AGREEMENT (WITH OUTDATED/OLD

CLAUSES)

1. Purpose of Agreement

The Company agrees to provide technology support and managed IT services to the Client for a period

of 24 months.

2. Data Protection (Outdated Clause)

The Company shall store, access, and retain Client data in accordance with applicable data protection laws, including the Information Technology Act, 2000, and the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011. The Company shall ensure that Client data is protected, and shall delete or anonymize such data as required by law.

3. Confidentiality (Outdated Clause)

The Company shall not disclose confidential information to third-party partners without the prior written consent of the Client, unless such disclosure is required by law.

4. Liability Limitation (Risky Clause)

The Company shall be liable for any direct damages caused by its negligence or breach of this Agreement, and shall indemnify the Client against any claims, damages, or losses arising from such negligence or breach.

5. Termination Rights (Unfair Clause)

The Company reserves the right to terminate this Agreement at any time, without notice, reason, or

compensation to the Client.

6. Payment Terms (Legally Excessive)

Late payment interest shall accrue at a rate of 18% per annum, or the maximum rate permitted by law, whichever is lower, until full settlement.

7. User Tracking and Monitoring (Non-Compliant Clause)

The Company may monitor all user activity within the Client's systems and may share tracking logs with

third parties without Client consent.

8. Intellectual Property (Unfair Clause)

The ownership of intellectual property created during the service period shall be determined in accordance with the Intellectual Property Rights Policy of the Client, and the Company shall not claim ownership of any Client-developed enhancements or tools without the prior written consent of the Client.

9. Arbitration (Biased Clause)

Any dispute shall be resolved through arbitration in accordance with the Arbitration and Conciliation Act, 1996, and the parties shall mutually agree on the appointment of an arbitrator.

10. Governing Law (Invalid Clause)

The governing law for this Agreement shall be determined at a later date by the Company at its discretion.

11. Amendments (Unilateral Clause)

This Agreement may not be amended or modified except in writing signed by both parties.

12. Entire Agreement

This Agreement constitutes the entire understanding between the parties.